



U.S. Department
of Transportation

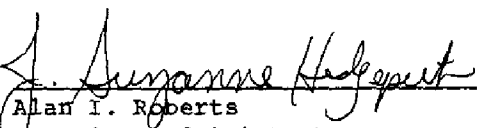
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9892 (EXTENSION)
ORIGINAL May 11, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9892 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 27 1991

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Bergen Barrel and Drum Company
Kearny, NJ

October 22, 1991

Dixie Poly-Drum Corporation
Yemassee, SC

October 22, 1991



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DOT-E 9892

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1. Bergen Barrel & Drum Company, Kearney, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of certain oxidizers, corrosive, flammable organic peroxide and Poison B solids described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of oxidizers, corrosive, flammable, organic peroxide, and poison B solids, in removable head, rotationally molded polyethylene drums of various volumetric capacities and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Bergen Barrel & Drum Company's application dated December 2, 1987, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Those corrosive, flammable, poison B, organic peroxide, and oxidizer solids presently authorized to be packaged in a DOT specification 21C fibre drum.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 173, Subpart E; F and H; 178.224.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is non-DOT specification rotationally molded, medium density polyethylene (PE) drum, with removable PE head, having a rated volumetric capacity of 15-, 20-, 30, 35-, and 55-gallons. The removable head must be secured to the body with a steel ring and bolt closure or steel band and clamp. Each drum, as prepared for shipment, must be capable of satisfactorily withstanding:

- a. The vibration test specified in 49 CFR 178.16-13(a)(2);
- b. The compression test specified in 49 CFR 178.19-7(c)(2); and
- c. The drop tests specified in 49 CFR 178.224-2(b) at ambient temperature and at 0°F. The conditioning specified in 49 CFR 178.224-2(a) is not required.

The above tests must be made for each plant location of manufacture, on samples taken at random of each type and diameter of container and must be repeated every four months or less during production. Samples last tested must be retained until further tests are made. Drums of 30-, 35-, and 55-gallons capacity must be fitted with an inside bag of polyethylene film of 0.002-inch minimum thickness when containing in excess of 250-, 350-, and 400-pounds respectively. Reuse of the container must be in accordance with the applicable requirements of 49 CFR 173.28.

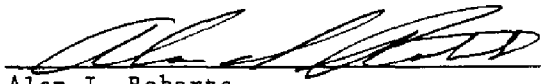
8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a. .
- b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- d. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.
- e. The weight limitations and inside packaging requirements contained in 49 CFR Part 173, Subparts E, F and H for DOT Specification 21C fiber drums apply to packagings authorized under this exemption.
- f. Moisture barrier protection required for certain materials is waived when the drums are used in this exemption.
- g. Each drum must be marked as specified in 49 CFR 178.224-4 except that "DOT-E 9892" must be substituted for "DOT-21C".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. March 31, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAY 11 1988

(DATE)

Address all inquires to: Director, Office of Hazardous Materials Transportation,, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.